

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE**

In re:	)	
	)	Chapter 11
	)	
Omnis Pleasants, LLC ¹	)	Case No. 26-11169 (___)
	)	
Debtor.	)	
	)	

**DEBTOR’S MOTION FOR ENTRY OF INTERIM AND FINAL
ORDERS (I) AUTHORIZING DEBTOR TO (A) MAINTAIN
PREPETITION INSURANCE POLICIES AND SURETY BONDS, AND PAY
RELATED PREPETITION OBLIGATIONS ARISING THEREUNDER,
AND (B) RENEW, REPLACE, SUPPLEMENT, OR OTHERWISE MODIFY
SUCH INSURANCE POLICIES AND SURETY BONDS; (II) MODIFYING
THE AUTOMATIC STAY WITH RESPECT TO THE WORKERS’
COMPENSATION PROGRAM; AND (III) GRANTING RELATED RELIEF**

Omnis Pleasants, LLC, d/b/a Pleasants Power Station, as debtor in possession (the “**Debtor**”) in the above-captioned chapter 11 case, respectfully states the following in support of this motion (this “**Motion**”), and relies upon and incorporates by reference the *Declaration of David Hindman, as Chief Executive Officer of Omnis Pleasants, LLC, d/b/a Pleasants Power Station, in Support of Chapter 11 Petition and First Day Motions* (the “**First Day Declaration**”) filed concurrently herewith²:

RELIEF REQUESTED

1. The Debtor seeks entry of interim and final orders (the “**Interim Order**” and “**Final Order**,” respectively), substantially in the forms annexed hereto as **Exhibits A-1** and **A-2**, respectively: (i) authorizing, but not directing, the Debtor to maintain, continue, renew, modify,

¹ The last four digits of Omnis Pleasants, LLC’s tax identification number are 2673. The location of the Debtor’s principal place of business and the Debtor’s service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

² Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to such terms in the First Day Declaration.

extend, supplement, or replace prepetition Insurance Policies (as defined below), and to pay all prepetition obligations related thereto; (ii) modifying the automatic stay with respect to the Workers' Compensation Program (as defined below) to allow the Workers' Compensation Claims (as defined below) to proceed under the applicable Workers' Compensation Policies (as defined below); and (iii) granting related relief, including scheduling a hearing (the "**Final Hearing**") to consider entry of the Final Order (the period of time before the Final Hearing, the "**Interim Period**").

JURISDICTION AND VENUE

2. The United States Bankruptcy Court for the District of Delaware (the "**Court**") has jurisdiction over this matter pursuant to 28 U.S.C. §§ 157 and 1334(b) and the *Amended Standing Order of Reference* from the United States District Court for the District of Delaware dated February 29, 2012 (the "**Standing Order**").

3. This is a core proceeding pursuant to 28 U.S.C. § 157(b)(2). Pursuant to Rule 9013-1(f) of the Local Rules of the United States Bankruptcy Court for the District of Delaware (the "**Local Rules**"), the Debtor consents to the entry of a final order by the Court in connection with this Motion to the extent that it is later determined that the Court, absent consent of the parties, cannot enter final orders or judgments in connection herewith consistent with Article III of the United States Constitution.

4. Venue is proper before the Court pursuant to 28 U.S.C. §§ 1408 and 1409.

5. The statutory and legal predicates for the relief requested herein are sections 105(a), 362(d), 363(b), and 364 of title 11 of the United States Code (the "**Bankruptcy Code**"), Rules 6003 and 6004 of the Federal Rules of Bankruptcy Procedure (the "**Bankruptcy Rules**"), and Local Rules 2002-1 and 9013-1.

BACKGROUND

A. General Background

6. On July 26, 2026 (the “**Petition Date**”), the Debtor commenced a voluntary case under chapter 11 of the Bankruptcy Code (the “**Chapter 11 Case**”). Pursuant to sections 1107(a) and 1108 of the Bankruptcy Code, the Debtor continues to operate its business and manage its financial affairs as debtor in possession.

7. As of the date hereof, no request for the appointment of a trustee or examiner has been made, nor has any statutory committee been appointed or designated, in the Chapter 11 Case.

8. The Debtor owns and operates a two-unit, 1,278-megawatt coal-fired power plant, together with related buildings, facilities, electrical generation infrastructure, and transmission powerlines, situated on approximately 190 acres of real property in Belmont, West Virginia (the “**Pleasants Power Station**”). The Pleasants Power Station operates within the PJM Interconnection, LLC market region to provide its customers with energy and power.

B. The Insurance Policies

9. In the ordinary course of business, the Debtor maintains numerous insurance policies administered by various insurance providers (collectively, the “**Insurance Carriers**”) that provide for, among other things, general liability, automobile liability, umbrella liability, directors’ and officers’ liability, workers’ compensation liability, property liability, and various other insurance coverage customary in the Debtor’s industry (such insurance policies, including the Workers’ Compensation Policies, collectively, the “**Insurance Policies**”).³

³ In addition to the policies identified on **Exhibit B** to this Motion, the Debtor maintains numerous insurance policies with respect to, among other things, medical, dental, disability, and life insurance coverage in favor of the Debtor’s employees, which policies are addressed in the Debtor’s Wages Motion (as defined in the First Day Declaration) filed concurrently herewith.

10. The Insurance Policies are essential to the protection of the Debtor's business, property, and assets, and, in many cases, such insurance coverage is required by various regulations, laws, and the Debtor's contractual obligations, including the requirements of the Office of the United States Trustee for the District of Delaware (the "**U.S. Trustee**") that a debtor maintain adequate coverage given the circumstances of its chapter 11 case. Failure to fulfill these legal and contractual obligations would significantly threaten the Debtor's business operations during the Chapter 11 Case.

C. Insurance Premiums and Premium Financing Agreements

11. The Insurance Policies generally are one year in length and renew annually. The Debtor may need to renew or extend certain Insurance Policies that expire during the pendency of the Chapter 11 Case and incur corresponding Insurance Premiums in connection with such renewals. The aggregate annual premium obligations associated with the Insurance Policies (the "**Insurance Premiums**") is approximately \$3.4 million, plus applicable taxes and surcharges. The Insurance Premiums for certain of the Debtor's Insurance Policies are financed through a third-party premium financing company while others are paid upfront at the time of renewal.

12. In the ordinary course, the Debtor typically finances certain Insurance Premiums (the "**Financed Policies**") owed in respect of the Insurance Policies through premium financing agreements (the "**Financing Agreements**") with First Insurance Funding. While the Debtor does not have any Financing Agreements in place as of the Petition Date, the Debtor requests authority to enter into any Financing Agreements as and when the need arises in the ordinary course of business.

13. As of the Petition Date, the Debtor believes there are no amounts outstanding on account of the Insurance Premiums or Financing Agreements (collectively, the "**Insurance Obligations**"). Out of abundance of caution, the Debtor seeks authority, but not direction, to pay

any prepetition obligations owing on account of the Insurance Obligations in an aggregate amount not to exceed \$100,000.00 pursuant to the Interim Order and in the ordinary course of business pursuant to the Final Order.

D. Insurance Broker Fees and Commissions

14. The Debtor typically obtains its Insurance Policies through its insurance broker, CAC Specialty LLC (“**CAC**”) and Alliant Insurance Services (“**Alliant**,” and, together with CAC, the “**Insurance Brokers**”), pursuant to certain claim service agreements (collectively, the “**Insurance Broker Agreements**”). Pursuant to the Insurance Broker Agreements, the Insurance Brokers assist the Debtor in obtaining comprehensive coverage for the Debtor and provide related services, including procuring and negotiating the Insurance Policies on competitive terms.

15. In exchange for the Insurance Brokers’ services, the Debtor pays each of the Insurance Brokers a fee either through (i) a single upfront payment for the Insurance Policies that are not financed or (ii) the installments in connection with the Financing Agreements, where the fee is prorated and paid within the installment payments, as well as certain commissions payable from time to time in connection with modifications of the existing insurance portfolio (collectively, the “**Insurance Broker Fees**”). As of the Petition Date, the Debtor believes it does not owe any unpaid amounts to Insurance Brokers on account of any Insurance Broker Fees.

16. Continuation of the services provided by the Insurance Brokers is necessary to ensure the Debtor’s ability to secure Insurance Policies on advantageous terms and to facilitate the proper maintenance of the Debtor’s Insurance Policies and coverage of the Debtor’s property during the pendency of the Chapter 11 Case. Accordingly, the Debtor seeks authority to honor its obligations under the Insurance Broker Agreements in the ordinary course of business pursuant to

the Final Order, and to continue to utilize the Insurance Brokers' services and honor all obligations arising thereunder in the ordinary course on a postpetition basis.

E. Workers' Compensation Program

17. As mandated by law, the Debtor provides employees with workers' compensation coverage for claims (the "**Workers' Compensation Claims**") arising from or related to their employment by the Debtor. In connection therewith, the Debtor maintains workers' compensation insurance policies in all states and foreign countries in which it has operations (collectively, and together with the WC Administrative Services (as defined below), the "**Workers' Compensation Program**," and the Debtor's obligations in connection therewith, including in respect of the WC Administrative Services, are collectively referred to herein as the "**Workers' Compensation Obligations**"). The Workers' Compensation Program is critical to maintaining the welfare of the Debtor's employees, as well as good standing in certain jurisdictions where the Debtor does business.

18. The Debtor maintains a policy for domestic workers' compensation liability (the "**Workers' Compensation Policy**") provided by Travelers Property Casualty Co. of America ("**Travelers**"). The Workers' Compensation Policy covers Workers' Compensation Claims at a fixed cost with no deductible. Based on historic averages, the Debtor pays approximately \$60,000.00 in aggregate annual premiums for the Workers' Compensation Policy.

19. As of the Petition Date, the Debtor is not aware of any open Workers' Compensation Claims against the Debtor under the Workers' Compensation Policies.

20. The Debtor utilizes third-party administrator services from Travelers (in such capacity, the "**WC Administrator**") in connection with its Workers' Compensation Program, including to negotiate, settle, and/or litigate the Workers' Compensation Claims, to make any required payments under the Workers' Compensation Program, and to coordinate the retention of

counsel in connection with Workers' Compensation Claims and payments related thereto (such services, the "**WC Administrative Services**"), for which WC Administrators charge incremental claims-based fees.

21. In the twelve (12) months prior to the Petition Date, the Debtor paid approximately \$80,000.00 on account of Workers' Compensation Obligations. As of the Petition Date, the Debtor is not aware of any outstanding Workers' Compensation Obligations aside from certain premium payments. To ensure uninterrupted administration of the Debtor's Workers' Compensation Program and resolution of the Workers' Compensation Claims, the Debtor seeks authority to (i) maintain its Workers' Compensation Program, including in respect of administering the Workers' Compensation Claims and utilizing the WC Administrators in connection therewith, in the ordinary course during the pendency of the Chapter 11 Case, (ii) honor any prepetition amounts outstanding on account of the Workers' Compensation Program and continue to honor such obligations, including in respect of WC Administrative Services rendered on behalf of the Debtor, on a postpetition basis in the ordinary course of business, and (iii) modify the automatic stay solely to allow the Debtor's Employees to assert claims under the Workers' Compensation Program, which Workers' Compensation Claims will be fully covered by the insurers beyond the applicable deductibles under the Workers' Compensation Policies.

F. The Surety Bonds

22. In the ordinary course of business, the Debtor maintains bonds in favor of certain parties, typically various governmental units and public agencies, to secure the Debtor's payment or performance of certain obligations as required by applicable laws and regulations (collectively, the "**Surety Bonds**" and, each, a "**Surety Bond**").

23. As of the Petition Date, the Debtor has one (1) Surety Bond which automatically renews on an annual basis and has a bond amount of \$75,000 for the benefit of West Virginia

Division of Highways. The Surety Bond is not fully cash collateralized. Instead, the Debtor pays a certain percentage of the coverage amount annually.

24. Under the Surety Bond, the risk of nonperformance or nonpayment covered by the Surety Bond shifts to the surety. The Hartford Insurance Group (the “**Surety**”) serves as the surety for the Debtor’s Surety Bond in effect as of the Petition Date.⁴ If a Surety incurs a loss on a Surety Bond, the Surety is entitled to recover the full amount of that loss from the Debtor. As of the Petition Date, the Debtor does not have any amounts outstanding on account of the Surety Bonds.

25. The Debtor obtains Surety Bonds primarily through Alliant (the “**Surety Broker**,” and together with the Insurance Brokers, the “**Brokers**”). The Surety Broker assists the Debtor in negotiating and obtaining the Surety Bond coverage necessary to operate its business efficiently at the lowest possible cost, as well as assistance with maintaining compliance with applicable statutes, rules, and regulations in the procurement of such surety coverage. As of the Petition Date, the Debtor does not have any outstanding obligations related to any fees or commissions that may be owed to the Surety Broker.

26. To continue its operations, the Debtor must be able to provide financial assurances to federal and state governments, regulatory agencies, and third parties. This, in turn, requires the Debtor to maintain its Surety Bond program, including paying Surety Bond premiums and any related fees as they come due, or potentially acquiring additional bonding capacity in the ordinary course of business, requesting releases from obsolete surety bonds, and executing other agreements in connection with its Surety Bond program. Like the Insurance Policies, the Surety Bonds are essential to the preservation of the Debtor’s business, properties, and assets and, in many cases,

⁴ In connection with the Debtor’s ongoing restructuring efforts, the Debtor is in the process of reviewing its Surety Bond portfolio, including any Surety Bonds that may have expired by their terms, and whether renewing such Surety Bonds or obtaining additional surety coverage aligns with those efforts.

such coverage is required by various regulations, laws, and the Debtor's contractual obligations. Moreover, like with the Insurance Policies, failure to fulfill regulatory and contractual obligations under the Surety Bond program would significantly threaten the Debtor's business operations throughout the Chapter 11 Case.

27. As of the Petition Date, the Debtor does not believe that it owes any amounts arising from the prepetition period on account of its Surety Bond program. By this Motion, the Debtor seeks authority (i) to maintain its existing Surety Bond program and to renew, modify, replace, extend, or add to its Surety Bond program, including the issuance of Additional Surety Bonds or acquisition of additional bonding capacity, and (ii) to honor any obligations in connection therewith, including to pay any Surety Bond premiums and compensation owed to the Surety Brokers, in each case, in the ordinary course of business on a postpetition basis.

BASIS FOR RELIEF

A. Continuation of the Insurance Policies and the Surety Bond Is Required by the Bankruptcy Code and U.S. Trustee Operating Guidelines

28. The Debtor must be permitted to make outstanding payments on account of the Insurance Policies and the Surety Bond. If the Debtor is unable to make such payments, the unpaid Insurance Carriers and Sureties may seek relief from the automatic stay to terminate such Insurance Policies or the Surety Bond, and the Debtor may be forced to obtain replacement coverage on an expedited basis at a significant cost to the estate. Accordingly, the Debtor believes that maintaining its Insurance Policies and the Surety Bond, and continuing to make all payments required thereunder, is essential to preserving the value of its estate and consistent with the Bankruptcy Code and the U.S. Trustee Operating Guidelines (as defined below), as is the authority to supplement, amend, extend, renew, or replace the Insurance Policies and Surety Bond as needed without further order of the Court.

29. The Debtor's business requires maintenance of the Insurance Policies and the Surety Bond on an uninterrupted basis. In many instances, the coverage provided under the Insurance Policies and the Surety Bond is subject to contractual obligations and obligations under the regulations and laws of the jurisdictions in which the Debtor conducts commercial activities. Moreover, section 1112(b)(4)(C) of the Bankruptcy Code provides that "failure to maintain appropriate insurance that poses a risk to the estate or to the public" is "cause" for mandatory conversion or dismissal of a chapter 11 case, and maintenance of insurance coverage is required by the *Operating Guidelines and Reporting Requirements for Debtors in Possession and Trustees* (the "**U.S. Trustee Operating Guidelines**") issued by the U.S. Trustee.

B. Payment of Obligations under the Insurance Policies and the Surety Bond and Continuation of Coverage Thereunder in the Ordinary Course Is Warranted Pursuant to the Bankruptcy Code and the Doctrine of Necessity

30. The Debtor does not believe that court approval is necessary to continue paying for and maintaining its existing Insurance Policies and the Surety Bond, but seeks this relief out of an abundance of caution. Section 363(c)(1) of the Bankruptcy Code provides that "the [debtor] may enter into transactions, including the sale or lease of property of the estate, in the ordinary course of business." 11 U.S.C. § 363(c)(1). The Third Circuit applies a two-part test to determine whether a transaction is in the ordinary course: (1) the "horizontal" test, which asks whether the transaction is "of the sort commonly undertaken by companies in [the] industry," and (2) the "vertical" test, which asks whether the transaction is "[within] the domain of transactions that a hypothetical creditor would reasonably expect to be taken in the circumstances." *In re Roth Am., Inc.*, 975 F.2d 949, 952–54 (3d Cir. 1992).

31. Maintaining the Insurance Policies and the Surety Bond are exactly the type of ordinary course transactions contemplated by section 363(c) of the Bankruptcy Code. Indeed, bankruptcy courts in this District have routinely granted the relief requested herein, ruling that

such transactions were in the ordinary course and thus in compliance with section 363(c) of the Bankruptcy Code. In the event, however, that this Court deems such actions to be outside the ordinary course of the Debtor's business, the Debtor should be authorized to take such actions under section 363(b) of the Bankruptcy Code, as they satisfy the "business judgment" standard.

32. Section 363(b) of the Bankruptcy Code provides that "[t]he [debtor], after notice and a hearing, may use, sell, or lease, other than in the ordinary course of business, property of the estate." 11 U.S.C. § 363(b)(1). Under section 363(b), courts in this jurisdiction require only that the debtor "show that a sound business purpose justifies" the proposed use of estate property. *Dai-ichi Kangyo Bank Ltd. v. Montgomery Ward Holding Corp. (In re Montgomery Ward Holding Corp.)*, 242 B.R. 147, 153 (D. Del. 1999); *see also In re Phoenix Steel Corp.*, 82 B.R. 334, 335–36 (Bankr. D. Del. 1987) (requiring a "good business reason" for use under section 363(b) of the Bankruptcy Code). Moreover, "[w]here the debtor articulates a reasonable basis for its business decisions (as distinct from a decision made arbitrarily or capriciously), courts will generally not entertain objections to the debtor's conduct." *In re Filene's Basement, LLC*, No. 11-13511 (KJC), 2014 WL 1713416, at *12 (Bankr. D. Del. 2014); *see also In re Tower Air, Inc.*, 416 F.3d 229, 238 (3d Cir. 2005) ("Overcoming the presumptions of the business judgment rule on the merits is a near-Herculean task.").

33. Thus, if a debtor's actions have a valid business purpose, the debtor should be presumptively approved to execute the transaction in question under section 363(b) of the Bankruptcy Code. Indeed, when applying the "business judgment" standard, courts show great deference to a debtor's business decisions. *See In re Integrated Res., Inc.*, 147 B.R. 650, 656 (S.D.N.Y. 1992) ("Courts are loath to interfere with corporate decisions absent a showing of bad faith, self-interest, or gross negligence."); *Lubrizol Enters., Inc. v. Richmond Metal Finishers, Inc.*,

756 F.2d 1043, 1046 (4th Cir. 1985) (“[T]he bankrupt’s decision upon it is to be accorded the deference mandated by the sound business judgment rule as generally applied by courts to discretionary actions or decisions of corporate directors”).

34. Section 105(a) of the Bankruptcy Code further provides that a court “may issue any order, process, or judgment that is necessary or appropriate to carry out the provisions of” the Bankruptcy Code. 11 U.S.C. § 105(a). The “necessity of payment” doctrine permits a bankruptcy court to exercise its equitable power to allow payment of critical prepetition claims not explicitly authorized by the Bankruptcy Code. *See In re Lehigh & New Eng. Ry. Co.*, 657 F.2d 570, 581 (3d Cir. 1981) (holding that if payment of a prepetition claim is essential to continued operation during reorganization, payment may be authorized even if made out of corpus); *see also In re Just for Feet, Inc.*, 242 B.R. 821, 824 (D. Del. 1999) (holding that section 105(a) “provides a statutory basis for payment of prepetition claims” under the “necessity of payment” doctrine); *In re Columbia Gas Sys., Inc.*, 171 B.R. 189, 191–92 (Bankr. D. Del. 1994) (same).

35. The Debtor has compelling business reasons for seeking to maintain and fulfill its obligations under the Insurance Policies and the Surety Bond currently in effect. The insurance coverage provided under the Insurance Policies and the Surety Bond is essential for preserving the value of the Debtor’s assets and, in many cases, such coverage is required by various regulations, laws, and contracts that govern the Debtor’s business operations. Indeed, maintenance of the Insurance Policies and the Surety Bond, and the coverage provided thereby, are required by the U.S. Trustee Operating Guidelines.

36. If the Debtor is unable to continue to perform on its obligations in connection with the Insurance Policies and the Surety Bond, the Debtor’s coverage under the Insurance Policies and the Surety Bond could be voided. Disruption of the Debtor’s insurance and surety coverage

would expose the Debtor to serious risks, including: (a) the possible incurrence of direct liability for the payment of claims that would otherwise have been payable by the Insurance Carriers under the Insurance Policies and the Surety Bond, respectively; (b) the possible incurrence of material costs and other losses that otherwise would have been compensated in full or in part by the Insurance Carriers and Sureties under the Insurance Policies and the Surety Bond, respectively; (c) the serious risk of losing good standing to conduct business in jurisdictions that require the Debtor to maintain certain insurance and surety coverage; (d) the serious risk of inability to obtain similar types of insurance and surety coverage; and (e) the possible incurrence of higher costs for reestablishing lapsed policies or obtaining new insurance or surety coverage. Any or all of these consequences could significantly impact the value of the Debtor's estate and the administration of the Chapter 11 Case, as it would expose the Debtor to higher costs and an increased risk of loss.

37. In addition, the risk that eligible claimants under the Workers' Compensation Policies will not receive timely payments for prepetition employment-related injuries could significantly diminish the financial well-being and morale of the Debtor's employees and cause attrition throughout the Debtor's business. Such departures by employees at this critical time may result in the disruption of the Debtor's business with a substantially adverse impact on the Debtor, the value of its assets, and the Chapter 11 Case. To avoid these potential detrimental consequences, the relief requested in this Motion should be granted.

38. The Debtor submits that the harmful effect on the administration of the Debtor's bankruptcy estate resulting from interruption in coverage under the Insurance Policies and the Surety Bond as a result of the Debtor's failure to honor the obligations thereunder would greatly outweigh the costs associated with honoring such obligations. Therefore, payment of obligations under the Insurance Policies and the Surety Bond, including, for the avoidance of doubt, the

prepetition amounts, if any, owing on account of the Insurance Premiums, the Financing Agreements, the Insurance Broker Fees, any premiums related to the Surety Bond, and any related commissions owed to the Brokers will benefit the Debtor and its stakeholders by maximizing the value of the Debtor's estate.

**C. A Limited Waiver of the Automatic Stay
for Workers' Compensation Claims Is Appropriate**

39. By this Motion, the Debtor seeks authorization under section 362(d) of the Bankruptcy Code to permit the Debtor's employees who hold valid claims under the Workers' Compensation Policies to proceed with such claims in the appropriate judicial or administrative forum. The automatic stay provided for in section 362(a)(1) of the Bankruptcy Code operates to stay "[t]he commencement or continuation . . . of a judicial, administrative, or other action or proceeding against the debtor . . . to recover a claim against the debtor that arose before the commencement of the case under this title." 11 U.S.C. § 362(a)(1). Section 362(d)(1) of the Bankruptcy Code, however, permits a debtor and other parties in interest to request a modification or termination of the automatic stay for "cause." 11 U.S.C. § 362(d)(1).

40. The Debtor believes that cause exists to modify the automatic stay because staying any proceedings relating to the claims under the Workers' Compensation Policies could have a detrimental effect on the financial well-being and morale of the Debtor's employees and cause attrition at this critical juncture in the Chapter 11 Case. Such departures could cause a severe disruption in the Debtor's business to the detriment of all stakeholders. Accordingly, the Debtor requests a limited waiver of the automatic stay for purposes of allowing the Workers' Compensation Claims to proceed.

D. Processing of Checks and Electronic Fund Transfers Should Be Authorized

41. The Debtor has sufficient funds to pay the amounts described in this Motion in the ordinary course of business by virtue of expected cash flows from ongoing business operations. In addition, under the Debtor's existing cash management system, the Debtor can readily identify checks or wire transfer requests as relating to any authorized payment in respect of the relief requested herein. Accordingly, the Debtor believes that checks or wire transfer requests, other than those relating to authorized payments, will not be honored inadvertently. Therefore, the Debtor respectfully requests that the Court authorize, but not direct, banks and other financial institutions at which the Debtor holds accounts (collectively, the "**Banks**"), when requested by the Debtor, to receive, process, honor, and pay any and all checks or wire transfer requests in respect of the relief requested in this Motion.

IMMEDIATE RELIEF IS JUSTIFIED

42. Pursuant to Bankruptcy Rule 6003, the Court may grant relief within twenty-one (21) days after the filing of the petition if the "relief is needed to avoid immediate and irreparable harm." Fed. R. Bankr. P. 6003(a). As set forth in the First Day Declaration, the Debtor believes an immediate and orderly transition into chapter 11 is critical to the viability of its operations. Further, any delay in granting such relief requested herein could hinder the Debtor's operations and restructuring efforts, and could immediately threaten the Debtor's future as a going concern. Accordingly, in order to avoid any such immediate and irreparable harm, the Debtor respectfully requests that the Court grant the relief requested in this Motion on an emergency basis.

REQUEST FOR WAIVER OF STAY

43. The Debtor also requests that the Court waive the stay imposed by Bankruptcy Rule 6004(h), which provides that "[a]n order authorizing the use, sale, or lease of property other than cash collateral is stayed until the expiration of fourteen (14) days after entry of

the order, unless the court orders otherwise.” Fed. R. Bankr. P. 6004(h). As described above, the relief that the Debtor seeks in this Motion is necessary for the Debtor to operate its business without interruption and preserve value for its estate. Accordingly, the Debtor respectfully requests that the Court waive the fourteen-day stay imposed by Bankruptcy Rule 6004(h), as the exigent nature of the relief sought herein justifies immediate relief.

44. To implement the foregoing immediately, the Debtor respectfully requests a waiver of the notice requirements of Bankruptcy Rule 6004(a) to the extent they are deemed to apply.

RESERVATION OF RIGHTS

45. Nothing contained in this motion or any order granting the relief requested in this Motion, and no action taken pursuant to the relief requested or granted (including any payment made in accordance with any such order), is intended as or shall be construed or deemed to be: (a) an admission as to the amount of, basis for, or validity of any claim against the Debtor under the Bankruptcy Code or other applicable nonbankruptcy law; (b) a waiver of the Debtor’s or any other party in interest’s right to dispute any claim on any grounds; (c) a promise or requirement to pay any particular claim; (d) an implication, admission, or finding that any particular claim is an administrative expense claim, other priority claim, or otherwise of a type specified or defined in this Motion or any order granting the relief requested by this Motion; (e) a request or authorization to assume, adopt, or reject any agreement, contract, or lease pursuant to section 365 of the Bankruptcy Code; (f) an admission as to the validity, priority, enforceability, or perfection of any lien on, security interest in, or other encumbrance on property of the Debtor’s estate; or (g) a waiver or limitation of any claims, causes of action, or other rights of the Debtor or any other party in interest against any person or entity under the Bankruptcy Code or any other applicable law. If the Court grants the relief sought herein, any payment made pursuant to the Court’s order

is not intended and should not be construed as an admission as to the validity of any particular claim or a waiver of the Debtor's rights to subsequently dispute such claim.

NOTICE

46. Notice of the Motion will be given to the following or their respective counsel, as applicable: (i) the U.S. Trustee; (ii) the parties included on the Debtor's list of thirty (30) largest unsecured creditors; (iii) the West Virginia Economic Development Authority; (iv) TRAG LLC and RG Energy LLC; (v) the United States Attorney's Office for the District of Delaware; (vi) the attorneys general for the state of West Virginia; (vii) the United States Department of Justice; (viii) the Internal Revenue Service; (ix) the Insurance Carriers; (x) the Brokers; and (xi) all parties requesting notice pursuant to Bankruptcy Rule 2002. Notice of this Motion and any order entered hereon will be served in accordance with Bankruptcy Rule 2002 and Local Rule 9013-1(m). In light of the nature of the relief requested herein, the Debtor submits that due and proper notice has been given under the circumstances, and that no other or further notice is necessary.

CONCLUSION

WHEREFORE, the Debtor respectfully requests entry of the Interim Order and Final Order, substantially in the forms attached hereto as **Exhibit A-1** and **Exhibit A-2**, (a) granting the relief requested herein and (b) granting such other and further relief as the Court may deem just and appropriate under the circumstances.

[Remainder of page intentionally left blank.]

Dated: July 27, 2026

/s/ S. Alexander Faris

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**Pending Admission Pro Hac Vice*

*Proposed Co-Counsel to the Debtor and
Debtor in Possession*

EXHIBIT A-1

Proposed Interim Order

found that due and proper notice of the Motion has been given, and that no other or further notice is required or necessary under the circumstances; and this Court having determined that it may enter an interim order consistent with Article III of the United States Constitution; and upon consideration of the First Day Declaration; and upon the record in the Chapter 11 Case and all of the proceedings had before this Court; and this Court having reviewed the Motion and having heard the statements in support of the relief requested therein at a hearing before this Court (the “**Hearing**”); and this Court having found and determined that the legal and factual bases set forth in the Motion establish just cause for the relief granted herein; and after due deliberation and sufficient cause appearing therefor,

IT IS HEREBY ORDERED THAT:

1. The Motion is **GRANTED** as set forth herein on an interim basis.
2. The final hearing (the “**Final Hearing**”) on the Motion shall be held on _____, 2026, at _____, prevailing Eastern Time. Any objections or responses to entry of a final order on the Motion shall be filed with the Court, and served so as to be received by the following parties, by no later than 4:00 p.m., prevailing Eastern Time, on _____, 2026: (i) proposed co-counsel to the Debtor, (a) Young Conaway Stargatt & Taylor, LLP, Rodney Square, 1000 North King Street, Wilmington, Delaware 19801, Attn: Andrew L. Magaziner (amagaziner@ycst.com); Robert F. Poppiti, Jr. (rpoppiti@ycst.com); and S. Alexander Faris (afaris@ycst.com), and (b) Herbert Smith Freehills Kramer (US) LLP, 1177 Avenue of the Americas, New York, New York 10036, Attn: Alexander Woolverton (alexander.woolverton@HSFKramer.com); Brian Shaughnessy (brian.shaughnessy@HSFKramer.com); Andrew Pollack (andrew.pollack@HSFKramer.com); and Jared C. Borriello (jared.borriello@HSFKramer.com); (ii) counsel to TRAG LLC and RG Energy LLC, DLA Piper LLP (US), 1201 North Market Street,

Suite 2100, Wilmington, Delaware 19801, Attn: R. Craig Martin (craig.martin@us.dlapiper.com) and 500 Eighth Street NW, Washington, DC 20004, Attn: Erik F. Stier (erik.stier@us.dlapiper.com); (iii) the Office of the United States Trustee for the District of Delaware, 844 King Street, Suite 2207, Lock Box 35, Wilmington, Delaware 19801 Attn: Benjamin Hackman (benjamin.a.hackman@usdoj.gov); and (iv) if any statutory committee has been appointed in the Chapter 11 Case, counsel to such committee. If no objections to the entry of the Final Order are timely filed, this Court may enter the Final Order without further notice or a hearing.

3. The Debtor is authorized, but not directed, and in each case in accordance with the ordinary course of business and this Interim Order, (i) to continue its Insurance Policies, Surety Bonds, and Workers' Compensation Program, and (ii) to pay any obligations related thereto in the ordinary course of business subject to the terms of this Interim Order, including with respect to the Broker Fees, whether arising prepetition or postpetition.

4. Payments on account of prepetition obligations relating to (i) the Insurance Obligations, Surety Bonds, and Broker Fees and (ii) Workers' Compensation Obligations shall not exceed \$100,000.00 in the aggregate on an interim basis.

5. The Debtor is authorized, but not directed, and in each case in accordance with the ordinary course of business and this Interim Order, to renew, extend, supplement, revise, replace, change, or otherwise modify coverage under its Insurance Policies and/or Surety Bonds as needed and to enter into new insurance policies and/or surety bonds through renewal, extension, or purchase as needed.

6. The Debtor is authorized, but not directed, to enter into new premium financing agreements in the ordinary course of business in accordance with the same practices and

procedures as were in effect prior to the commencement of the Chapter 11 Case, to the extent that the Debtor determines such action is in the best interest of its estate; *provided that* the Debtor shall provide notice to the U.S. Trustee, counsel to TRAG LLC and RG Energy LLC, and any official committee appointed in this Chapter 11 Case within five (5) business days of entry into a new premium finance agreement; and provided further that the Debtor shall not enter into any new premium financing agreements that are materially adverse to the Debtor's estate absent further order of this Court.

7. The Debtor is authorized, but not directed, to acquire bonding capacity as needed in the ordinary course of business, including through posting letter of credit collateral or other collateral, and executing other agreements as needed in connection with the Insurance Policies and the Surety Bonds.

8. The Debtor is authorized, but not directed, and in each case in accordance with the ordinary course of business and this Interim Order, to pay all costs, fees, and commissions on account of the Broker in the ordinary course of business, including unpaid amounts owed to such parties as of the Petition Date.

9. Pursuant to section 362(d) of the Bankruptcy Code, the automatic stay is lifted solely to the extent necessary to allow the Debtor's employees to proceed with their Workers' Compensation Claims in the applicable judicial or administrative forum, and the Debtor's employees are authorized to so proceed. The Debtor is authorized, but not directed, to continue the Workers' Compensation Policies in the ordinary course of business and pay all prepetition obligations relating thereto.

10. Nothing contained in the Motion or this Interim Order, and no action taken pursuant to the relief requested or granted (including any payment made in accordance with this Interim

Order), is intended as or shall be construed or deemed to be: (a) an admission as to the amount of, basis for, or validity of any claim against the Debtor under the Bankruptcy Code or other applicable nonbankruptcy law; (b) a waiver of the Debtor's or any other party in interest's right to dispute any claim on any grounds; (c) a promise or requirement to pay any particular claim; (d) an implication, admission, or finding that any particular claim is an administrative expense claim, other priority claim, or otherwise of a type specified or defined in the Motion or this Interim Order; (e) a request or authorization to assume, adopt, or reject any agreement, contract, or lease pursuant to section 365 of the Bankruptcy Code; (f) an admission as to the validity, priority, enforceability, or perfection of any lien on, security interest in, or other encumbrance on property of the Debtor's estate; (g) a waiver or limitation of any claims, causes of action, or other rights of the Debtor or any other party in interest against any person or entity under the Bankruptcy Code or any other applicable law; or (h) create any rights in favor of, or enhance the status or nature of any claim held by, any person.

11. Notwithstanding anything herein (a) any payment made or to be made pursuant to the authority granted herein, or any authorization contained herein, shall be subject to and in compliance with any orders authorizing the Debtor's use of prepetition collateral (in each case, the "**Adequate Protection Order**"), including any budget in connection therewith (the "**Budget**") and (b) to the extent there is any inconsistency between the Adequate Protection Order and the terms of this Interim Order, the terms of the Adequate Protection Order, including the Budget, shall control. Nothing herein shall modify, alter, or waive any terms, provisions, requirements, or restrictions of the Adequate Protection Order.

12. The Debtor is authorized, but not directed, to issue postpetition checks, or to effect postpetition fund transfer requests, in replacement of any checks or fund transfer requests that are

dishonored as a consequence of this Chapter 11 Case with respect to prepetition amounts owed in connection with the relief granted herein and to the extent authorized by this Interim Order.

13. Notwithstanding Bankruptcy Rule 6004(h), the terms and conditions of this Interim Order shall be immediately effective and enforceable upon its entry.

14. The Debtor is authorized and empowered to take all actions necessary to implement the relief granted in this Interim Order.

15. This Court retains jurisdiction with respect to all matters arising from or related to the implementation, interpretation, or enforcement of this Interim Order.

EXHIBIT A-2

Proposed Final Order

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE**

In re:

Omnis Pleasants, LLC¹

Debtor.

)
) Chapter 11
)
) Case No. 26-11169 (____)
)
) **Ref. Docket Nos. _ & _**
)

FINAL ORDER (I) AUTHORIZING DEBTOR TO (A) MAINTAIN PREPETITION INSURANCE POLICIES AND SURETY BONDS, AND PAY RELATED PREPETITION OBLIGATIONS ARISING THEREUNDER, AND (B) RENEW, REPLACE, SUPPLEMENT, OR OTHERWISE MODIFY SUCH INSURANCE POLICIES AND SURETY BONDS; (II) MODIFYING THE AUTOMATIC STAY WITH RESPECT TO THE WORKERS' COMPENSATION PROGRAM; AND (III) GRANTING RELATED RELIEF

Upon the motion (the “**Motion**”)² filed by the above-captioned debtor and debtor in possession (the “**Debtor**”) seeking entry of an order (this “**Final Order**”) (i) authorizing, but not directing, the Debtor to maintain, continue, renew, extend, modify, supplement, or replace prepetition Insurance Policies and Surety Bonds, and to pay all prepetition obligations related thereto, (ii) modifying the automatic stay under section 362 of the Bankruptcy Code with respect to the Workers’ Compensation Program to allow the Workers’ Compensation Claims to proceed under the applicable Workers’ Compensation Policies, and (iii) granting related relief; and this Court having found that it has jurisdiction over this matter pursuant to 28 §§ 1334(b) and 157, and the Standing Order; and this Court having found that venue of the Chapter 11 Case and the Motion in this District is proper pursuant to 28 U.S.C. §§ 1408 and 1409; and this Court having found that this matter is a core proceeding pursuant to 28 U.S.C. § 157(b); and this Court having found that

¹ The last four digits of Omnis Pleasants, LLC's tax identification number are 2673. The location of the Debtor's principal place of business and the Debtor's service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

² Capitalized terms used but not otherwise defined herein shall have the meaning ascribed to them in the Motion.

due and proper notice of the Motion has been given, and that no other or further notice is required or necessary under the circumstances; and this Court having determined that it may enter a final order consistent with Article III of the United States Constitution; and upon consideration of the First Day Declaration; and upon the record in the Chapter 11 Case and all of the proceedings had before this Court; and this Court having reviewed the Motion and having heard the statements in support of the relief requested therein at a hearing before this Court (the “**Hearing**”), if any; and this Court having found and determined that the relief sought in the Motion is in the best interests of the Debtor, its estate, its creditors, and all other parties in interest; and that the legal and factual bases set forth in the Motion establish just cause for the relief granted herein; and after due deliberation and sufficient cause appearing therefor,

IT IS HEREBY ORDERED THAT:

1. The Motion is **GRANTED** as set forth herein on a final basis.
2. The Debtor is authorized, but not directed, and in each case in accordance with the ordinary course of business and this Final Order, (i) to continue its Insurance Policies, Surety Bonds, and Workers’ Compensation Program, and (ii) to pay any obligations related thereto, including with respect to the Broker Fees, in the ordinary course of business subject to the terms of this Final Order, whether arising prepetition or postpetition.
3. Payments on account of prepetition obligations relating to (i) the Insurance Obligations, Surety Bonds, and Broker Fees and (ii) Workers’ Compensation Obligations shall not exceed \$100,000.00 in the aggregate absent further order of the Court.
4. The Debtor is authorized, but not directed, and in each case in accordance with the ordinary course of business and this Final Order, to renew, extend, supplement, revise, replace, change, or otherwise modify coverage under its Insurance Policies and/or Surety Bonds as needed

and to enter into new insurance policies and/or surety bonds through renewal, extension, or purchase as needed.

5. The Debtor is authorized, but not directed, to enter into new premium financing agreements in the ordinary course of business in accordance with the same practices and procedures as were in effect prior to the commencement of the Chapter 11 Case, to the extent that the Debtor determines such action is in the best interest of its estate; *provided that* the Debtor shall provide notice to the U.S. Trustee, counsel to TRAG LLC and RG Energy LLC, and any official committee appointed in this Chapter 11 Case within five (5) business days of entry into a new premium finance agreement; and provided further that the Debtor shall not enter into any new premium financing agreements that are materially adverse to the Debtor's estate absent further order of this Court.

6. The Debtor is authorized, but not directed, to acquire bonding capacity as needed in the ordinary course of its business, including through posting letter of credit collateral or other collateral, and execute other agreements, as needed in connection with the Insurance Policies and the Surety Bonds.

7. The Debtor is authorized, but not directed, and in each case in accordance with the ordinary course of business and this Final Order, to pay all costs, fees, and commissions on account of the Broker in the ordinary course of business, including unpaid amounts owed thereto as of the Petition Date.

8. Pursuant to section 362(d) of the Bankruptcy Code, the automatic stay is lifted solely to the extent necessary to allow the Debtor's employees to proceed with their Workers' Compensation Claims in the applicable judicial or administrative forum, and the Debtor's

employees are authorized to so proceed. The Debtor is authorized, but not directed, to continue the Workers' Compensation Policies.

9. Nothing contained in the Motion or this Interim Order, and no action taken pursuant to the relief requested or granted (including any payment made in accordance with this Interim Order), is intended as or shall be construed or deemed to be: (a) an admission as to the amount of, basis for, or validity of any claim against the Debtor under the Bankruptcy Code or other applicable nonbankruptcy law; (b) a waiver of the Debtor's or any other party in interest's right to dispute any claim on any grounds; (c) a promise or requirement to pay any particular claim; (d) an implication, admission, or finding that any particular claim is an administrative expense claim, other priority claim, or otherwise of a type specified or defined in the Motion or this Interim Order; (e) a request or authorization to assume, adopt, or reject any agreement, contract, or lease pursuant to section 365 of the Bankruptcy Code; (f) an admission as to the validity, priority, enforceability, or perfection of any lien on, security interest in, or other encumbrance on property of the Debtor's estate; (g) a waiver or limitation of any claims, causes of action, or other rights of the Debtor or any other party in interest against any person or entity under the Bankruptcy Code or any other applicable law; or (h) create any rights in favor of, or enhance the status or nature of any claim held by, any person.

10. Notwithstanding anything herein (a) any payment made or to be made pursuant to the authority granted herein, or any authorization contained herein, shall be subject to and in compliance with any orders authorizing the Debtor's use of prepetition collateral (in each case, the "**Adequate Protection Order**"), including any budget in connection therewith (the "**Budget**") and (b) to the extent there is any inconsistency between the Adequate Protection Order and the terms of this Final Order, the terms of the Adequate Protection Order, including the Budget, shall

control. Nothing herein shall modify, alter, or waive any terms, provisions, requirements, or restrictions of the Adequate Protection Order.

11. The Debtor is authorized, but not directed, to issue postpetition checks, or to effect postpetition fund transfer requests, in replacement of any checks or fund transfer requests that are dishonored as a consequence of this Chapter 11 Case with respect to prepetition amounts owed in connection with the relief granted herein and to the extent authorized by this Final Order.

12. Notice of the Motion as provided therein shall be deemed good and sufficient notice thereof and the requirements of Bankruptcy Rule 6004(a) and the Local Rules are satisfied by such notice.

13. Notwithstanding Bankruptcy Rule 6004(h), the terms and conditions of this Final Order shall be immediately effective and enforceable upon its entry.

14. The Debtor is authorized and empowered to take all actions necessary to implement the relief granted in this Final Order.

15. This Court retains jurisdiction with respect to all matters arising from or related to the implementation, interpretation, or enforcement of this Final Order.

EXHIBIT B

Insurance Policies

Insurance Policies

TYPE OF COVERAGE	INSURER	POLICY NUMBER	POLICY TERM	APPROXIMATE ANNUAL PREMIUM ¹
AUTO LIABILITY	EVEREST INDEMNITY INSURANCE CO	EN4CA00858251	10/15/2025 - 10/15/2026	\$ 31,047
D&O	AMBRIDGE PARTNERS LLC	AMB07376	2/13/2026 - 2/13/2028	60,000
D&O	ENDURANCE AMERICAN SPECIALTY INSURANCE COMPANY	ADL30109083100	2/13/2026 - 2/13/2028	90,000
GENERAL LIABILITY	EVEREST INDEMNITY INSURANCE CO	EN4GL00565251	10/15/2025 - 10/15/2026	242,959
UMBRELLA	ASSOCIATED ELECTRIC & GAS INS SVC(AEGIS)	XL6140102P	10/15/2025 - 10/15/2026	681,108
USL&H	AMERICAN LONGSHORE MUTUAL ASSOCIATION, LTD	TBD	7/24/2026 - 7/24/2027	42,806
WORKERS' COMPENSATION	TRAVELERS PROPERTY CASUALTY CO OF AMERICA	6JUB-A386399-2-26	1/31/2026 - 1/31/2027	60,839
WHARFINGERS - PRIMARY	TANGO SPECIALTY	TBD	7/24/2026 - 7/24/2027	25,000
WHARFINGERS - EXCESS	TANGO SPECIALTY	TBD	7/24/2026 - 7/24/2027	15,000
POLLUTION	BEAZLEY EXCESS AND SURPLUS INSURANCE, INC.	D3C9F6260101	7/2/2026 - 7/2/2027	14,727
PROPERTY	STARR SURPLUS LINES INSURANCE CO	25SSLDOBS340071	10/29/2025 - 10/29/2026	168,750
PROPERTY	ENERGY INSURANCE MUTUAL	311910-25GP	10/29/2025 - 10/29/2026	100,485
PROPERTY	NATIONAL FIRE & MARINE INS CO	42-PRP-344368-01	10/29/2025 - 10/29/2026	111,111
PROPERTY	LLOYDS OF LONDON	EA0320925	10/29/2025 - 10/29/2026	38,500
PROPERTY	LLOYDS OF LONDON	EA0321025	10/29/2025 - 10/29/2026	27,500
PROPERTY	LLOYDS OF LONDON	EA0321224	10/29/2025 - 10/29/2026	63,750
PROPERTY	CONVEX INSURANCE UK LTD.	EA0321225	10/29/2025 - 10/29/2026	296,555
PROPERTY	UNITED SPECIALTY INSURANCE CO	EA0321425	10/29/2025 - 10/29/2026	73,080
PROPERTY	LLOYDS OF LONDON	EA0321725	10/29/2025 - 10/29/2026	16,000
PROPERTY	LLOYDS OF LONDON	EA0321925	10/29/2025 - 10/29/2026	80,500
PROPERTY	QBE UK LIMITED	EA0322125	10/29/2025 - 10/29/2026	98,175

TYPE OF COVERAGE	INSURER	POLICY NUMBER	POLICY TERM	APPROXIMATE ANNUAL PREMIUM ¹
PROPERTY	ASPEN INSURANCE - UNITED KINGDOM	EA0323225	10/29/2025 - 10/29/2026	172,975
PROPERTY	LLOYDS OF LONDON	EA0323425	10/29/2025 - 10/29/2026	31,000
PROPERTY	LLOYDS OF LONDON	EA0323525	10/29/2025 - 10/29/2026	35,360
PROPERTY	ENDURANCE WORLDWIDE INSURANCE LTD	EA0323925	10/29/2025 - 10/29/2026	77,931
PROPERTY	LLOYDS OF LONDON	EA0325125	10/29/2025 - 10/29/2026	9,000
PROPERTY	LLOYDS OF LONDON	EA0383325	10/29/2025 - 10/29/2026	195,300
PROPERTY	ASSOCIATED ELECTRIC & GAS INS SVC(AEGIS)	PO6075003P	10/29/2025 - 10/29/2026	548,100
1) Approximate annual premium amounts exclude taxes				